



CHAPTER xlii.

An Act to authorise the construction of subways in the city of London to repeal the obligation to maintain Shadwell Fish Market to provide for the granting of superannuation and pension allowances to certain of the officers and servants of the Corporation of London and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS it would be of public and local advantage that subways for foot passengers should be constructed at the junction of Queen Victoria Street and Cannon Street in the city of London and that the powers necessary therefor should be conferred on the mayor and commonalty and citizens of the city of London acting by the mayor aldermen and commons of that city in Common Council assembled (in this Act referred to as "the Corporation"):

And whereas the undertaking of the London River-side Fish Market Company authorised by the London River-side Fish Market Act 1882 was by the London River-side Fish Market (Transfer to Corporation of London) Act 1901 transferred to and vested in the Corporation:

And whereas it has been found that no public demand has existed or now exists for the holding of a fish or other market on the site prescribed in that behalf by the said Act of 1882 and it is expedient that the obligation to provide and maintain the said market should be repealed and that the lands comprised in the said undertaking should be used for other purposes:

And whereas the Corporation have from time to time made allowances out of the rates by way of superannuation and pensions to their officers and servants:

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And whereas it is expedient that a uniform practice should so far as possible be established for the granting by the Corporation of superannuation allowances or pensions to their officers and servants employed in or in connexion with the public health and valuation and rating departments of the Corporation in manner provided by this Act:

And whereas it is expedient that the Corporation should be empowered to assist any societies constituted from amongst their servants for the purpose of providing allowances to the members of such societies during sickness or to their families or representatives in case of death by subscribing to the funds of such societies:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the city of London and are in this Act referred to as the deposited plans sections and book of reference:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

INTRODUCTORY.

Short title
and com-
mencement
of Act.

1. This Act may be cited as the City of London (Various Powers) Act 1912 and Parts IV. and V. of this Act shall not come into operation until the first day of January one thousand nine hundred and thirteen or such subsequent date in that year as the Corporation may by resolution determine (in those Parts of this Act referred to as "the commencement of this Act").

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Introductory.

Part II.—Subways.

Part III.—Shadwell Fish Market.

Part IV.—Superannuation.

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Part V.—Pensions.

Part VI.—Miscellaneous.

3. In this Act unless there be something in the subject or context repugnant to such construction the expression— Interpreta-
tion.

“The subways” means the subways and works by this Act authorised ;

“Poor rate” means the poor rate for the parish of the city of London ;

“General rate” means the general rate of the city of London ;

“Officer” means every officer in the service of the Corporation in or in connexion with the public health and valuation and rating departments in an established capacity and every servant on weekly wages exceeding with emoluments other than overtime forty-five shillings a week in the permanent employ of the Corporation in or in connexion with the public health and valuation and rating departments and duly placed on the establishment staff ;

“Servant” means every servant or workman not less than twenty years of age on weekly wages not exceeding with emoluments other than overtime forty-five shillings a week in the permanent employ of the Corporation in or in connexion with the public health and valuation and rating departments and duly placed on the establishment staff ;

“Service” means service under the Corporation in or in connexion with the public health and valuation and rating departments or as regards an officer or servant transferred to the Corporation from the Commissioners of Sewers of the city of London also service under the said Commissioners or as regards an officer or servant previously in the employ of any other predecessors of the Corporation also service under such predecessors ;

“Aggregated service” means service as above defined together with any service under any other local or public authority or authorities which shall be aggregated and reckoned in accordance with the provisions of the section

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of this Act whereof the marginal note is "Service under other authorities";

"Emoluments" includes all fees poundage and other payments made to any officer or servant in or in connexion with the public health and valuation and rating departments as such by the Corporation for his own use also the money value of any apartments rations or other allowance in kind appertaining to his office or appointment but does not include casual payments or gratuities or payments in respect of overtime;

"Joint appointment" includes any office the tenure whereof is determined by the death removal resignation or incapacity of the holder of another office under the Corporation;

"Superannuation fund" means a fund to be established and administered by the Corporation in the manner described and provided in the section of this Act whereof the marginal note is "Superannuation fund";

"Pension fund" means a fund to be established and administered by the Corporation in the manner described and provided in the section of this Act whereof the marginal note is "Pension fund";

"Provident fund" means a fund constituted exclusively from amongst the servants of the Corporation in or in connexion with the public health and valuation and rating departments as provided in the section of this Act whereof the marginal note is "Power to contribute to provident fund";

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation. A.D. 1912.

PART II.

SUBWAYS.

4. The provisions of the Lands Clauses Acts (except sections 127 to 131 of the Lands Clauses Consolidation Act 1845) shall except so far as the same are expressly varied by or are inconsistent with the provisions of this Act be incorporated with and form part of this Act and for the purpose of such incorporation the term “the promoters of the undertaking” in the said Act shall be construed to mean the Corporation. Incorporation of Lands Clauses Acts.

5. The Corporation may subject to the provisions of this Act and in the lines and according to the levels shown on the deposited plans and sections make and maintain the works herein-after described together with all necessary and proper footways approaches steps works and conveniences connected therewith (that is to say):— Power to execute works.

A Subway (No. 1) for foot passengers commencing on the south footway of Cannon Street at a point seventy yards or thereabouts east of the centre of Bread Street and terminating on the northern footway of Cannon Street fifty yards or thereabouts west of the centre of Queen Street:

A Subway (No. 2) for foot passengers commencing on the north footway of Cannon Street at a point three yards or thereabouts west of the centre of Bow Lane and terminating at the entrance to the Mansion House Station of the Metropolitan District Railway Company at a point six yards or thereabouts west of the centre of Garlick Hill.

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Alterations
of streets &c.

6. For the purposes of or in connexion with the construction of the subways the Corporation may alter both as regards lines and levels use cross stop up break up divert raise lower or widen streets roads and footways and may divert alter and remove all such steps boundary walls railings windows pavement lights gratings areas sewers drains subways tubes wires mains and pipes as may be necessary for the purposes of this Act:

Provided that nothing in this section shall extend to prejudice or affect any of the provisions for the protection of any undertakers authorised to supply electrical energy contained in any special Act or any Provisional Order confirmed by Act of Parliament.

Power to
deviate.

7. Subject to the provisions of this Act the Corporation may in making the subways deviate to an extent not exceeding eight feet downwards and two feet upwards from the levels defined on the deposited sections and may deviate laterally from the lines of the subways to any extent within the limits of deviation defined on the deposited plans.

Power to
take lands.

8. Subject to the provisions of this Act the Corporation may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference (other than the lands numbered 8 and 9 on the deposited plans) which they may require for the purposes of this Act.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

9. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise: A.D. 1912.
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be

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severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:

- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Costs of
arbitration
&c. in cer-
tain cases.

10. The court or person to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant

giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be paid by the claimant: A.D. 1912.

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands And the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

12. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in Correction of errors in deposited plans and book of reference.

A.D. 1912. — question may apply to two justices acting for the city for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the city of London and shall be kept by such clerk of the peace with the other documents to which it relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Alteration of
position of
water gas
and other
pipes.

13. The Corporation may for any purpose in connexion with the subways raise sink or otherwise alter the position of any watercourse water-pipe or gas-pipe belonging to or connected with any house or building and also any main pipe or apparatus laid down or used by any company body or person for carrying a supply of water or water for hydraulic power or gas and also any pipe tube wire or apparatus laid down or placed for telegraphic or other purposes or for supplying electricity (all of which mains pipes tubes wires and apparatus are in this section included in the expression "apparatus") and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit to any company body or person and making reasonable compensation to any company body or person for any damage caused by any such alteration. Provided always that before the Corporation alter the position of any apparatus laid down or used by any such company body or person they shall (except in cases of emergency) give to the company body or person to whom the same belongs notice of their intention to do so specifying the time at which they will begin to do so such notice to be given seven days at least before the commencement of the work for effecting such alteration and such work shall be done under the superintendence (at the expense of the Corporation) of the company body or person to whom such apparatus belongs unless such company body or person refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the execution of such work and

the Corporation shall execute such work to the reasonable satisfaction of the engineer of such company body or person but if within seven days of the receipt of such notice any such company body or person shall give notice to the Corporation of their desire themselves to execute such work they shall forthwith proceed to do so and the cost reasonably incurred by them in so doing shall be repaid to them by the Corporation. Provided also that the Corporation shall not cause any street or road to be lowered or raised nor the position of any apparatus to be altered so as to leave over such apparatus in any part a covering of less than two feet where the covering now existing is not less than two feet unless the Corporation shall in such case protect such apparatus from frost or injury by artificial covering to the satisfaction of the engineer of such company body or person or more than six feet where the covering now existing does not exceed six feet or more than such existing covering where the same exceeds six feet unless the Corporation in such case provide special means of access to such apparatus to the satisfaction of the engineer of such company body or person. A.D. 1912.

Notwithstanding the stopping up temporarily of any portion of any street or road in which any apparatus of any such company body or person shall be laid the said company body or person their engineers workmen and others in their employ shall at all times have full free and uninterrupted rights of access to all or any of such apparatus and shall be at liberty to do all such works in and upon any such street or road as aforesaid as may be necessary for inspecting repairing maintaining removing replacing or extending such apparatus.

If any difference arise between the Corporation or their engineer and any such company body or person or their or his engineer touching the amount of any compensation costs expenses or charges under the provisions of this Act to be paid by the Corporation to any such company body or person or touching any work matter or thing with reference to such apparatus under such provisions to be done or executed by the Corporation or the mode of doing or executing the same such difference shall unless otherwise agreed be settled by an engineer to be agreed upon by the engineer of the Corporation and any such company body or person respectively or failing agreement by such engineer as shall on the application of the engineer either of the Corporation or of any such company body or

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A.D. 1912. person be named by the President of the Institution of Civil Engineers.

Provided that nothing in this section shall extend to prejudice or affect any of the provisions for the protection of any undertakers authorised to supply electrical energy contained in any special Act or any Provisional Order confirmed by Act of Parliament.

For protection of Postmaster-General.

14.—(1) The Corporation shall not raise sink divert alter or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and subject to the provisions of the Telegraph Act 1878.

(2) If any work authorised by this Act involves the removal or alteration of any post office telephone call-box the Corporation shall not remove or alter such box but shall give notice to the Postmaster-General of the removal or alteration required and the Postmaster-General shall remove or alter the box as he may think fit and the Corporation shall pay to the Postmaster-General all expenses incurred by him in relation to such removal or alteration.

For protection of London County Council.

15. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (in this section called "the council") (that is to say):—

(1) The Corporation shall not commence any of the works by this Part of this Act authorised which shall or may pass over under or by the side of or so as to interfere with any sewers or subways of the council until they shall have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with plans and sections thereof as herein-after defined and until the council shall have signified their approval of the same unless the council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans and sections as aforesaid and the Corporation shall comply with and conform to all reasonable orders directions and regulations of the council in the execution of the said works and shall provide by new altered or substituted

works in such manner as the council shall reasonably require for the proper protection of and for preventing injury or impediment to the said sewers and subways of the council by reason of the intended works or any part thereof and shall save harmless the council against all expenses to be occasioned thereby and all such works shall be done by or under the direction superintendence and control of the council at the costs charges and expenses in all respects of the Corporation and all reasonable costs charges and expenses which the council may be put to by reason of such works of the Corporation whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the council by the Corporation on demand and when any new altered or substituted works as aforesaid or any works of defence connected therewith shall be completed by or at the costs charges or expenses of the Corporation under the provisions of this Part of this Act the same shall thereafter be as fully and completely under the direction jurisdiction and control of the council as any sewers subways or works of the council now or hereafter may be : A.D. 1912.

- (2) As regards any works in respect of which the Corporation are under the provisions of this section required to submit plans and sections to the council the council may require the Corporation in constructing such works to make any reasonable deviation within the limits prescribed by this Part of this Act from the lines or levels shown upon such plans or sections for the purpose of avoiding injury or risk of injury to the sewers and subways of the council and the Corporation shall in constructing such works deviate accordingly :
- (3) The plans and sections to be submitted to the council under the provisions of this section shall be detailed plans drawings sections and specifications describing the exact position and manner in which and the levels at which the works are proposed to be constructed and shall accurately describe the position

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of all sewers and subways of the council within the limits of deviation shown on the deposited plans (for which purpose the council shall allow the Corporation access to plans in their possession and to any sewers and subways in order to enable the Corporation to obtain trustworthy information) and shall comprise detailed drawings of any alterations which the Corporation may propose to make in any such sewer or subway :

- (4) The council may require such modification to be made in the said plans drawings sections and specifications as may be reasonably necessary to secure the sewers and drainage system of London and any subways under the jurisdiction and control of the council against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers and subways :
- (5) The Corporation shall be liable to make good all injury or damage caused by or resulting from any of their works or operations to any sewers drains subways or works vested in the council and the council shall from time to time have power to recover the amount thereof from the Corporation in any court of competent jurisdiction :
- (6) The approval by the council of any plans or superintendence by the council of any work under the provisions of this section shall not exonerate the Corporation from any liability or affect any claim for damages under this section or otherwise :
- (7) Any dispute or difference which may arise between the Corporation and the council under this section so far as it applies to the subways of the council shall be settled by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of
Metropolitan

16. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following pro-

visions shall unless otherwise agreed between the Corporation and the board have effect (that is to say):—

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Water
Board.

(1) Notwithstanding anything contained in the section of this Act of which the marginal note is "Alteration of position of water gas and other pipes"—

(A) The period within which the board may give notice to the Corporation of their desire themselves to execute any such work as is referred to in the said section shall be twenty-one days instead of seven days;

(B) The said section shall so far as regards any apparatus of the board be read and have effect as if the words "five feet" were substituted therein for the words "six feet" wherever those words occur; and

(C) The Corporation shall not execute any such work as is referred to in the said section except in accordance with plans sections and specifications to be previously submitted to and approved by the board so far as they affect or are likely to affect any apparatus of the board. Provided that if the board shall not within one month from the date of the submission to them of any such plans sections and specifications intimate in writing to the Corporation their objection thereto or any requirements in respect thereof they shall be deemed to have approved the same and that in case any difference shall arise between the board and the Corporation with respect to such plans sections and specifications or as to the manner in which any works therein referred to are to be executed such difference shall be referred to and determined by an arbitrator to be agreed upon between the board and the Corporation or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers:

(2) Except as by this section expressly provided the provisions thereof shall be in addition to and not in derogation of any other provision of this Act to the benefit of which the board would have been entitled if this section had not been enacted.

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For protec-
tion of
Metropolitan
District
Railway
Company.

17. For the protection of the Metropolitan District Railway Company (in this section called "the District Company") the following provisions shall unless otherwise agreed between the Corporation and the District Company be observed and have effect (that is to say):—

(1) Notwithstanding anything shown on the deposited plans and sections or contained in this Act the Corporation shall not without the previous consent in writing of the District Company enter upon take use or interfere with either temporarily or permanently any part of the Mansion House Station railway and works or other property of the District Company (in this section called "the District Company's property") or without the like consent alter vary or in any way interfere with any of the works connected therewith but subject to such consent the Corporation may construct to the reasonable satisfaction of the company such stairs passages barriers communications and openings as may be necessary or expedient for enabling passengers and others to pass between the subways of the Corporation and the Mansion House Station and premises of the District Company Such stairs passages barriers communications and openings shall at all times thereafter be maintained repaired lighted and policed by and at the expense of the Corporation:

(2) Before the Corporation in the exercise of the powers of this Act commence the construction of any works or any alterations or repairs thereof (all of which are in this section referred to as "works") on the District Company's property they shall give to the District Company one month's notice in writing of their intention so to do accompanied by full and detailed plans sections and specifications of the works so to be executed and the proposed mode of executing the same and no such works shall be commenced until the District Company shall have signified their approval in writing of such plans sections and specifications and the District Company shall within twenty-one days from such notice signify their approval or disapproval in writing but if they disapprove of such

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plans sections and specifications or the mode of executing the work the reasonableness of such disapproval shall be referred from time to time to the determination of an arbitrator as herein-after provided and if he shall decide that the disapproval is reasonable then he shall determine the mode of executing of the works:

- (3) The District Company shall be entitled at the expense of the Corporation to supervise the mode in which the works described in the plans submitted by the Corporation are carried out and for this purpose to appoint such engineers clerks of the works inspectors and watchmen as may be reasonably necessary for the purpose:
- (4) The Corporation shall at all times maintain their works (including if and so long as the District Company so require all stairs passages barriers communications and openings as aforesaid) on the District Company's property in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the District Company and if and whenever the Corporation fail so to do the District Company may make and do in and upon as well the lands of the Corporation as their own lands all such works and things as the District Company may reasonably think requisite and the sum from time to time certified by such engineer to be the reasonable amount of their expenditure in that behalf shall be repaid to the District Company by the Corporation. The engineer of the District Company and those authorised by him shall at all times have free access to the works and every facility shall be afforded him and them for the inspection thereof and every reasonable notice which he or they may give touching any defect or want of repair shall immediately or as soon as possible be complied with by the Corporation:
- (5) If during or by reason of the construction of the works the District Company's property or any works or conveniences connected therewith shall be injured or damaged such injury or damage shall forthwith be made good by the Corporation at their own expense or in the event of their failing so to do the District

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Company may make good the same and recover the cost thereof against the Corporation:

(6) The Corporation shall not in making and maintaining the works by this Act authorised in any manner obstruct or interfere with the entrances to or exits from the District Company's Mansion House Station and if at any time or times hereafter the entrances to or exits from their station shall be obstructed or interfered with contrary to this enactment the Corporation shall pay to the District Company full compensation in respect thereof:

(7) In the event of the District Company desiring to alter or enlarge their Mansion House Station or any of the works or buildings connected therewith on the District Company's property the Corporation shall not oppose either directly or indirectly the application for the granting of powers for such enlargement or alteration except for a protective clause:

(8) Notwithstanding anything in this Act contained the Corporation shall be responsible for and make good to the District Company all costs losses damages and expenses which may be occasioned to the District Company's property or to any person or persons using their said station or to any servant of the District Company or otherwise by reason of the construction maintenance or failure of the works by this Act authorised and the works in connexion therewith or of any act or omission of the Corporation or of any of the persons in their employ or of their contractors or others and the Corporation shall effectually indemnify and hold harmless the District Company from all lawful claims and demands upon or against them by reason of such execution or failure or of any such omission:

(9) All reasonable fees costs charges and expenses in respect of any of the matters in this section contained (other than matters which become the subject of arbitration under the provisions herein-after contained and which shall be dealt with as the arbitrator shall direct) shall be borne and paid by the Corporation:

(10) Nothing in this section nor any right granted there- A.D. 1912.

under or under any agreement made in regard to the subways or the access thereto shall prejudice lessen or affect the right of the District Company to compensation for any frontage or other part of the District Company's property which may at any time be acquired by the Corporation for any street widening or other purpose:

(11) Any difference which may arise under the provisions of this section between the District Company and the Corporation shall from time to time be referred to and determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to any such reference.

18. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

19. The subways constructed under the powers of this Act shall for police and all other purposes form part of the public way within the city. Subways to be public ways.

PART III.

SHADWELL FISH MARKET.

20. From and after the passing of this Act notwithstanding anything contained in the London River-side Fish Market Act 1882. or the London River-side Fish Market (Transfer to Corporation of London) Act 1901 the Corporation shall not be under any obligation to provide or maintain a public market for any purpose on the lands acquired under the said Act of 1882 or any portion thereof and section 22 (Market to be perpetual) and the proviso to section 18 (Power to take lands) of the said Act of 1882 are hereby repealed. Repeal of obligation to maintain Shadwell Fish Market.

21. For the purpose of facilitating the formation of a park or open space at Shadwell as an East London Memorial to His late Majesty King Edward VII. the London County Council may transfer or surrender to the "King Edward VII. Memorial Committee" or to the Corporation on such terms and conditions as Power to London County Council to acquire property at Shadwell

[Ch. xlii.] *City of London (Various Powers)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. the said Council think fit all their leasehold interest in the pre-
mises formerly used as an ice factory lying between Lower Shad-
well and the River Thames and on the west side of and adjoining
Shadwell Fish Market or may purchase and acquire by agree-
ment the freehold of the said premises and transfer the said
property on such terms and conditions (if any) as they think fit
to the "King Edward VII. Memorial Committee" or to the
Corporation.

Money to be
raised by
London
County
Council on
capital
account.

22.—(1) The London County Council may expend on capital
account for the purposes of the section of this Act of which the
marginal note is "Power to London County Council to acquire
property at Shadwell for King Edward VII. Memorial" such
money as may from time to time be necessary and in order to
raise or provide the money required for those purposes the said
Council may create and issue consolidated stock or resort to the
Consolidated Loans Fund or otherwise raise money in accordance
with the provisions of the Acts regulating the raising of money
for capital purposes by the said Council:

Provided that nothing in this Act shall authorise the bor-
rowing and expenditure of any money by the said Council on
capital account after the thirtieth day of September one thousand
nine hundred and thirteen.

(2) The said Council in accordance with the provisions of
the Acts relating to the raising and expenditure of money by
them on capital account shall make provision for the redemption
of stock or the repayment of money borrowed or expended on
capital account for the purposes of the said section within such
term not exceeding in any case sixty years as the said Council
with the consent of the Treasury may determine.

PART IV.

SUPERANNUATION.

Title of
officers to
superannua-
tion allow-
ances.

23.—(1) Subject to the provisions of this Act every officer
who shall be a contributor to the superannuation fund and—

(A) Shall have completed ten years' service or aggregated
service and shall become incapable of discharging
the duties of his office with efficiency by reason of
permanent infirmity of mind or body (other than
permanent incapacity due to an injury in respect

of which he receives compensation under the Workmen's Compensation Act 1906 or any scheme made thereunder) or of old age; or

(B) Shall have attained the age of sixty years and have completed a service or aggregated service of forty years; or

(c) Shall have attained the age of sixty-five years;

shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale by this Act provided.

(2) An officer shall not be entitled to a superannuation allowance on the ground of old age unless he has completed the age of sixty years.

(3) Where an officer has attained the age of sixty-five years he shall cease to hold his office or employment and shall thereafter receive the superannuation allowance to which he may be entitled under this Act. Provided that the Corporation may by resolution extend his period of service for one year and so from time to time as they may deem expedient.

(4) Provided always that (notwithstanding anything in this Act contained) any superannuation allowance which may be granted to any officer who at the commencement of this Act shall have attained the age of sixty years and have completed a service or aggregated service of forty years or shall have attained the age of sixty-five years shall be paid out of the rate or rates out of which his salary or wages and emoluments were paid and not out of the superannuation fund.

24. The superannuation allowance to be made to an officer under this Act shall be after ten years' service or aggregated service ten-sixtieths of the average amount of his annual salary or wages and emoluments during the five years ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment and after he has completed eleven years' service or aggregated service such superannuation allowance shall be increased by one-sixtieth for every complete year of service or aggregated service over and above ten years up to a maximum of forty years' service or aggregated service:

Scale of
superannua-
tion allow-
ances.

[Ch. xlii.] *City of London (Various Powers)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. Provided that the average amount of salary or wages and emoluments shall be computed on the basis of the salary or wages and emoluments paid when working full time:

 Provided also that in the event of an officer being reduced to a lower rate of salary or wages and emoluments for any cause whatsoever (other than misconduct) he may if he so desire continue to contribute to the superannuation fund at the same rate as at the time such reduction took place in which case he shall be entitled to the scale of superannuation allowance covered by such contributions:

 Provided further that the Corporation in computing the amount of superannuation allowance to any officer may in consideration of peculiar professional qualifications or of special circumstances add a number of years' service not exceeding ten to the number of years service or aggregated service of such officer.

Service
under other
authorities.

25. Subject to the deduction of the increased percentage amounts to be contributed in that behalf as herein-after provided all periods of service by an officer rendered before his appointment by the Corporation or their predecessors under and as an officer of any other local or public authority or authorities shall be aggregated and reckoned for the purposes of this Act whether the whole time of such officer has been devoted to such service or not:

 Provided that no period of service shall be so aggregated and reckoned in a case where an officer is unable to prove to the reasonable satisfaction of the Corporation within a period of six months from the commencement of this Act that he has been in the service or employment of any such authority or authorities and no such period of service shall be so aggregated and reckoned which has been or may be aggregated and reckoned for the purpose of superannuation allowances or gratuities under any other Act except in cases where such superannuation allowance or gratuity was payable by the Corporation and has been commuted in consideration of a new appointment as an officer of the Corporation:

 Provided also that an officer appointed prior to the passing of this Act shall be entitled by notice in writing within six months thereafter to require that all or any period or periods of service under any authority or authorities whereof the duties

or powers have not been transferred to the Corporation shall not be so aggregated and reckoned : A.D. 1912.

And provided further that in case of an officer appointed subsequently to the passing of this Act no such period of service shall be so aggregated and reckoned unless such officer declares prior to his appointment and proves to the satisfaction of the Corporation within a period of three months from the date of such appointment that he has been in the service or employment of any such authority or authorities and the Corporation on the application of such officer in such case shall at their discretion direct whether the whole or any part of such period of service shall or shall not be so aggregated and reckoned :

And further that no such period of service shall be so aggregated and reckoned which has been or may be reckoned for the purpose of superannuation allowances or gratuities under any other Act.

26. An officer who is dismissed or resigns or otherwise ceases to hold his office or employment in consequence of any offence of a fraudulent character or grave misconduct shall forfeit all claim to any superannuation allowance under this Act in respect of his previous service or aggregated service. Provided that in the case of any such officer the Corporation may if they see fit return to him out of the superannuation fund the whole or any part of his contributions under this Act. Forfeiture for misconduct.

27.—(1) An officer who has not become entitled to a superannuation allowance and who—
(A) Voluntarily resigns his office or employment; or
(B) Loses his office or employment by reason of a reduction of staff or of any alteration of areas or boundaries; or
(C) Otherwise ceases to hold his office or employment by reason of bodily injury not occasioned by his own default or of any other cause whatever other than his own misconduct; Return of contributions and power to grant gratuities and superannuation allowances in certain cases.

shall be entitled to receive a sum equal to the amount of all his contributions under this Act.

(2) In any such case of cesser or loss of office or employment as in this section mentioned the Corporation may also if they see fit grant to an officer a gratuity not exceeding twice

[Ch. xlii.] *City of London (Various Powers)* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. the amount of his salary or wages and emoluments during the year ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment but every such gratuity shall be paid out of the rate out of which his salary or wages and emoluments were paid and not out of the superannuation fund.

(3) Provided that when such cesser or loss of office or employment occurs in a case in which the death or insanity of one of the holders of a joint appointment vacates the office of the other the officer whose office or employment is so vacated shall unless he is re-appointed by the Corporation and except where in the case of husband and wife the joint appointment is terminated owing to the misconduct of one of them be entitled to receive during life a superannuation allowance according to the scale provided by this Act if such officer has attained the age of fifty years or has served for not less than twenty years.

Payments at death of officer in certain cases.

28. In the event of the death of any officer within one year after he has become entitled to a superannuation allowance under this Act the Corporation shall out of the superannuation fund pay to the legal personal representatives of such officer such a sum as the Corporation may think fit but such sum shall not be less than shall be sufficient to make up one year's superannuation allowance to such officer when added to any superannuation allowance already paid to him.

Return of contributions in case of death.

29. In the event of an officer dying before becoming entitled to or receiving a superannuation allowance under this Act the Corporation shall pay to his legal personal representatives out of the superannuation fund the amount of the contributions made by such officer under this Act.

Allowance not assignable.

30. Every superannuation allowance granted under this Act shall be payable to or in trust for the officer and shall not be assignable or chargeable with his debts or other liabilities.

Obligation of officers to contribute.

31. Subject to the provisions of this Act every officer shall contribute to the superannuation fund a percentage amount of his salary or wages and emoluments according to the scale provided by this Act such amount to be deducted by the Corporation from the salary or wages and emoluments payable to him and to be carried to the credit of and form part of the superannuation fund.

32. Any officer whose salary or wages and emoluments are partly paid or provided out of the poor rate or general rate and partly paid or provided out of any other funds or revenues of the Corporation may with the consent of the Corporation become a contributor to the superannuation fund in respect of so much of his salary or wages and emoluments as the Corporation may determine as being paid or provided out of the poor rate or general rate in the same manner as if his salary or wages and emoluments were wholly paid or provided out of the poor rate or general rate and with the same rights and obligations.

A.D. 1912.

Provision as
to officers
paid in part
only out of
rates.

33. The percentage amounts to be deducted for the purposes of the superannuation fund shall subject to the provisions contained in the section of this Act whereof the marginal note is "Additional contributions in respect of service under other authorities" be as follows (that is to say):—

Scale of
contribu-
tions.

In the case of officers with less than five years' service or aggregated service at the passing of this Act or appointed after the passing of this Act two and a half per centum of the annual salary or wages and emoluments;

In the case of officers with more than five and less than fifteen years' service or aggregated service at the passing of this Act three per centum of the annual salary or wages and emoluments; and

In the case of officers with more than fifteen years' service or aggregated service at the passing of this Act three and a half per centum of the annual salary or wages and emoluments:

Provided that in the case of officers whose salary or wages and emoluments for the time being do not exceed one hundred and twenty pounds a year the percentage amounts to be deducted shall be two per centum of their annual salary or wages and emoluments.

The percentage amounts aforesaid shall be deducted from each and every payment made to officers by way of salary or wages and emoluments but such deduction shall not be calculated to fractions of one penny. Provided that deductions in respect of emoluments other than monetary payments shall be made by instalments or otherwise as the Corporation may from time to time direct.

A.D. 1912.

Additional
contributions
in respect of
service
under other
authorities.

34. Any officer appointed by the Corporation after the commencement of this Act in whose case any period or periods of service under any local authority or authorities other than the Corporation or their predecessors are aggregated and reckoned shall at the option of the Corporation in addition to the contributions provided by the last preceding section of this Act pay or contribute either (a) the aggregate amount of any contributions and gratuities which may have been returned or paid to him on the termination of any period or periods of service which are so aggregated and reckoned as aforesaid by the local authority or authorities under whom such service has been spent or (b) annually by such instalments and in such manner as aforesaid for each aggregated period of ten years or part thereof a sum equivalent to one per centum of the annual salary or wages and emoluments received by such officer.

Superannua-
tion fund.

35.—(1) The Corporation shall establish and administer a superannuation fund to which shall be carried and credited—

(A) A sum in this Part of this Act called “the primary annual contribution” to be raised annually in and by the poor rate and general rate to bear such a proportion to the total salaries or wages and emoluments of the officers as herein-after provided;

(B) All percentage amounts of salary or wages and emoluments deducted as in this Act provided and any amounts that may be received by the Corporation under the provisions of the section of this Act whereof the marginal note is “Additional contributions in respect of service under other authorities”;

(C) All dividends and interest arising out of the investment of the superannuation fund or any part thereof; and

(D) Such amounts out of the poor rate and general rate as may be required to meet any deficiency in the superannuation fund.

(2) The following shall be charged upon the superannuation fund (namely):—

(A) Superannuation allowances made in pursuance of this Act;

(B) Contributions or parts of contributions returned or other sums paid in pursuance of this Act.

36. Within six months after the commencement of this Act and at the expiration of every subsequent period of five years the condition of the superannuation fund shall be submitted by the Corporation to an actuary being a Fellow either of the Institute of Actuaries or of the Faculty of Actuaries in Scotland appointed by them who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify what proportion in his opinion the primary annual contribution shall bear to the total salaries or wages and emoluments of the officers contributing to the fund so that such proportion shall at all times be as nearly constant and vary as little as may be and so that without further recourse to the poor rate or the general rate the superannuation fund as constituted under paragraphs (A) (B) and (C) of subsection (1) of the last preceding section shall be solvent (having regard to existing and prospective liabilities) and for the then ensuing quinquennial period the primary annual contribution shall be in the proportion so certified and shall be paid to the superannuation fund accordingly.

A.D 1912.

Actuarial
investi-
gation.

37. Where an officer in receipt of a superannuation allowance under this Act is appointed to any office or employment by the Corporation or any other local authority such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary or wages and emoluments thereof are equal to or in excess of the amount of such allowance and if they are not then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency.

Subsequent
appoint-
ments.

Any such person on ceasing to hold such office or employment shall be entitled to revert to and receive the full amount of his original superannuation allowance.

38.—(1) The Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of the superannuation fund and not required for the time being to meet payments under this Act but subject to the following conditions:—

Investment
of super-
annuation
fund.

(A) The moneys so used shall be repaid to the superannuation fund within the period by the methods and out of the fund rate or revenue within by and out of which

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Act, 1912.

A.D. 1912.

a loan raised under the statutory borrowing power would be repayable :

(B) Interest shall be paid to the superannuation fund on any moneys so used and for the time being not repaid to the fund. Such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :

(c) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power.

(2) Any moneys forming part of the superannuation fund which are not so used shall be invested in any statutory securities.

Saving for
existing
officers.

39. Any officer in the service or employment of the Corporation at the time of the passing of this Act may at any time within three months after the date of such passing signify in writing to the Corporation his intention not to avail himself of the provisions of this Act and in that event it shall not be obligatory on him notwithstanding anything in this Act contained to make any contributions or submit to any deductions from his salary or wages and emoluments under this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Act.

Arbitration.

40. Any question which may arise between the Corporation and any officer as to the right to or the amount of a superannuation allowance or the amount of the contribution of such officer shall in default of agreement be submitted to arbitration in accordance with the provisions of the Arbitration Act 1889.

Application
of provisions
of Friendly
Societies Act
1896.

41. The Corporation shall in respect of the superannuation fund be registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1)

of section 8 and sections 28 and 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply as if (a) the Corporation were a society to which that Act applies and were the trustees of such society (b) the provisions of this Act relating to superannuation fund were the rules of such society (c) the superannuation fund were the fund of such society and (d) the contributors to the fund were the members of such society: A.D. 1912.

Provided that the Corporation shall send to the registrar under the said Act a copy of any certificate and report made in pursuance of the section of this Act of which the marginal note is "Actuarial investigation."

PART V.

PENSIONS.

42.—(1) Subject to the provisions of this Act every servant who shall be a contributor to the pension fund and—

Title of
servants to
pensions.

(A) Shall have completed ten years' service and shall become incapable of discharging his duties with efficiency by reason of permanent infirmity of mind or body (other than permanent incapacity due to an injury in respect of which he receives compensation under the Workmen's Compensation Act 1906 or any scheme made thereunder) or of old age; or

(B) Shall have attained the age of sixty years and have completed a service of forty years; or

(C) Shall have attained the age of sixty-five years;

shall be entitled on resigning or otherwise ceasing to hold his employment to receive during life out of the pension fund a pension according to the scale by this Act provided.

(2) A servant shall not be entitled to an allowance on the ground of old age unless he has completed the age of sixty years.

(3) Where a servant has attained the age of sixty-five years he shall cease to hold his employment and shall thereafter receive the pension to which he may be entitled under this Act Provided that the Corporation may by resolution extend his period of employment for one year and so from time to time as they may deem expedient.

A.D. 1912.

(4) Provided always that (notwithstanding anything in this Act contained) any pension which may be granted to any servant who at the commencement of this Act shall have attained the age of sixty years and have completed a service of forty years or shall have attained the age of sixty-five years shall be paid out of the rate or rates out of which his wages or emoluments were paid and not out of the pension fund.

(5) And provided further that any servant who in respect of permanent incapacity due to an injury receives under the Workmen's Compensation Act 1906 or any scheme made thereunder compensation of a less amount than the pension to which he would have been entitled if he had been entitled to receive a pension under this section shall be entitled to receive the amount by which such pension exceeds such compensation.

Scale of
pensions.

43. The scale of pensions to be paid to a servant entitled to a pension pursuant to the provisions of the section of this Act whereof the marginal note is "Title of servants to pensions" who shall have completed thirty years' service shall be as follows (that is to say):—

A servant who at the time of ceasing to hold his employment was contributing fourpence per week to the fund twelve and sixpence per week :

A servant who at the time of ceasing to hold his employment was contributing fivepence per week fifteen shillings per week :

A servant who at the time of ceasing to hold his employment was contributing sixpence per week seventeen shillings and sixpence per week :

A servant who at the time of ceasing to hold his employment was contributing sevenpence per week one pound per week :

A servant who at the time of ceasing to hold his employment was contributing eightpence per week twenty-two shillings and sixpence per week.

The pension to be paid to a servant who becomes entitled to and receives a pension before he has completed thirty years' service shall be reduced by one-thirtieth for every year's or part of a year's service less than thirty years and a pension to be paid to a servant who becomes entitled to and receives a pension after he has completed thirty years' service shall be increased

by one-thirtieth for every complete year of service over and above thirty years up to a maximum of forty years' service : A.D. 1912.

Provided that in the event of a servant being reduced to a lower wage for any cause whatsoever (other than misconduct) he may if he so desire continue to contribute to the pension fund at the same rate as at the time such reduction took place in which case he shall be entitled to the scale of pension covered by such contribution :

Provided also that the Corporation in computing the amount of pension to be paid to any servant may in consideration of special circumstances add a number of years service not exceeding ten to the number of years service of such servant.

44. Subject to the provisions of this Act every servant in the employment of the Corporation shall contribute to the pension fund according to the scale provided by this Act such amount to be deducted by the Corporation from the wages and emoluments payable to him and to be carried to the credit of and form part of the pension fund. Obligations
of servants
to contribute.

45. The amounts to be deducted for the purposes of the pension fund shall be as follows (that is to say) :— Scale of
contributions
to pension
fund.

In the case of servants whose wages and emoluments other than overtime do not exceed twenty-five shillings per week fourpence per week :

In the case of servants whose wages and emoluments other than overtime exceed twenty-five shillings per week but do not exceed thirty shillings per week fivepence per week :

In the case of servants whose wages and emoluments other than overtime exceed thirty shillings per week but do not exceed thirty-five shillings per week sixpence per week :

In the case of servants whose wages and emoluments other than overtime exceed thirty-five shillings per week but do not exceed forty shillings per week sevenpence per week :

In the case of servants whose wages and emoluments other than overtime exceed forty shillings per week eightpence per week :

Provided that in the case of any servant whose wages and emoluments other than overtime do not exceed twenty shillings per week no such deduction shall be made except on the request in writing of such servant and after such request the

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A.D. 1912. subsequent period of service of such servant shall be reckoned "years service" under the provisions of this Act but any servant from whose wages and emoluments no such deduction is made shall not be entitled to receive any pension gratuity or other benefit under this Act:

Provided also that for the purposes of this section wages and emoluments shall be computed on the basis of the wages and emoluments paid when working full time.

Pension
fund.

46.—(1) The Corporation shall establish and administer a pension fund to which shall be carried and credited—

(A) A sum in this Part of this Act called "the primary annual contribution" to be raised annually in and by the poor rate and general rate to bear such a proportion to the total wages and emoluments of the servants as herein-after provided;

(B) All contributions of servants deducted as in this Act provided;

(C) All dividends and interest arising out of the investment of the pension fund or any part thereof; and

(D) Such amounts out of the poor rate and general rate as may be required to meet any deficiency in the pension fund.

(2) The following shall be charged upon the pension fund (namely):—

(A) Pensions granted in pursuance of this Act;

(B) Contributions or parts of contributions returned or paid in pursuance of this Act.

Power to
contribute to
provident
fund.

47. The Corporation shall in addition to the other powers conferred upon them by this Act but not in substitution therefor be empowered at their discretion to contribute out of the poor rate and the general rate in respect of servants to the funds of a society registered under the Friendly Societies Act 1896 constituted exclusively from amongst their servants or some of them for the purpose of providing by contributions or subscriptions for amongst other matters—

The relief or maintenance of the members of such society during sickness:

The relief or maintenance of the orphan children of deceased members of such society : A.D. 1912.

Insuring the payment of money on the death of a member :

The funeral expenses of a member or the wife of a member of such society.

In the event of the Corporation contributing to such society as aforesaid then and in such case they shall have power if they think fit without any further authority than is contained in this section and on such terms and conditions and subject to such restrictions and reservations in every respect as they think expedient to contribute to the funds of such society in manner following (that is to say):—

They may contribute out of the poor rate and the general rate such sums as they may from time to time determine not exceeding in the aggregate such an amount as would be equivalent to an aggregate of twopence for each and every weekly contribution to be made to the funds of such society of not less than fourpence by the members thereof respectively.

Provided that nothing in this Act contained shall render it compulsory upon any servant of the Corporation to become a member of any society which may be constituted as aforesaid.

48. The sections of Part IV. of this Act whereof the marginal notes are “Forfeiture for misconduct” “Return of contributions and power to grant gratuities and superannuation allowances in certain cases” “Payments at death of officer in certain cases” “Return of contributions in case of death” “Allowance not assignable” “Actuarial investigation” “Subsequent appointments” “Investment of superannuation fund” “Saving for existing officers” “Arbitration” and “Application of provisions of Friendly Societies Act 1896” shall with the necessary modifications extend and apply to and for the purposes of this Part of this Act and for such purposes the said sections shall be construed as if the words “servant” “pension fund” and “pension” had been substituted therein for the words “officer” “superannuation fund” and “superannuation allowance” respectively wherever they occur.

Application
of certain
sections of
Part IV.

A.D. 1912.

PART VI.

MISCELLANEOUS.

Expenses of
execution of
Act.

49. All expenses incurred by the Corporation in carrying into execution the provisions of Part II. of this Act shall be paid out of the general rate and all expenses incurred by the Corporation in carrying into execution the other provisions of this Act shall be paid out of the poor rate and general rate or either of them.

Crown
rights.

50. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give).

Costs of Act.

51. All the costs charges and expenses preliminary and incidental to the preparing applying for and obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the poor rate and the general rate or either of them.

[2 & 3 GEO. 5.] *City of London (Various Powers)* [Ch. xlii.]
Act, 1912.

The SCHEDULE referred to in the foregoing Act. A.D. 1912.

PROPERTIES OF WHICH THE CORPORATION MAY TAKE A PART
ONLY.

Parish.	Numbers on deposited Plans.
City of London - - - - -	1 3 4 6 6A and 10.

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